

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #
Date of filing:

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M.R.H., an infant by her Mother and Natural Guardian,
THEODORA HARRISON and THEODORA
HARRISON, individually,

Plaintiff designates Queens
County as the place of trial

Plaintiffs,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
HAILE FIORE-Shield # 3027 and JOHN AND JANE
DOES-Police Officers as yet unidentified,

Locus of Occurrence
Queens Center Mall
90-15 Queens Boulevard
Elmhurst, New York 11373

Defendants.

County of Queens

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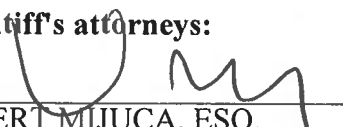
TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER HAILE FIORE-Shield #
3027
Tax ID # 972643
c/o New York City Police Department- 110th
Precinct
94-41 43rd Avenue
Elmhurst, New York 11373

Dated: Brooklyn, New York
October 14, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
M.R.H., an infant by her Mother and Natural Guardian,
THEODORA HARRISON and THEODORA
HARRISON, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
HAILE FIORE-Shield # 3027 and JOHN AND JANE
DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

1. That at all times hereinafter mentioned, the plaintiffs were and still is are residents of the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on February 8, 2024, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiffs was held on June 27, 2024.

6. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, M.R.H., was lawfully at or about the premises known as the Queens Center Mall, located at 90-15 Queens Boulevard, in the County of Queens, City and State of New York.

8. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the infant plaintiff, M.R.H., was approached and was assaulted and battered by the defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being pushed, grabbed, kicked, slammed face down to the ground, struck with knees and punches and was forcefully placed in handcuffs. While in handcuffs during her arrest, the infant plaintiff's chest was uncovered in the assault and battery and she asked for her shirt to be pulled down to cover it, but her request was denied. Thereafter, the plaintiff was brought to the 110th Precinct and was held there for a period of time. While at the precinct, the officers postponed her prompt medical care for the injuries she sustained during her arrest, but she was eventually brought to New York Presbyterian Hospital Queens for treatment while still in police custody. At approximately 10:30 PM, the infant plaintiff was returned back to the 110th Precinct from the hospital and stood there overnight. At approximately 12:00 AM, on November 18, 2023, the infant plaintiff was brought to Queens County Central Booking and placed in a holding cell next to adult males who were behaving inappropriately, exposing themselves and engaging in obscene behavior while waiting for arraignment. The infant plaintiff was detained until 7:00 PM that evening because the police officers were delayed in processing the arrest paperwork before being released following a court appearance and transfer to Queens County Family Court.

9. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, M.R.H., was assaulted and battered by defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant plaintiff, M.R.H., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF M.R.H., AN INFANT BY
HER MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the infant plaintiff, M.R.H..

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, M.R.H..

21. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the infant plaintiff, M.R.H., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, M.R.H..

26. That the defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the infant plaintiff, M.R.H., against her will and said confinement was not privileged.

27. By the reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON
BEHALF OF M.R.H., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, THEODORA HARRISON**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at

length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, M.R.H..

31. That as a result of said intentional and negligent acts, the infant plaintiff, M.R.H., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their

employment, maliciously prosecuted the infant plaintiff, M.R.H.

36. That on November 17, 2023, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, infant plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, M.R.H.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to

POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the infant plaintiff, M.R.H., sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF M.R.H., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, THEODORA HARRISON**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER HAILE FIORE-Shield # 3027 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the infant plaintiff, M.R.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
LOSS OF SERVICES ON BEHALF OF THEODORA HARRISON
AS MOTHER AND NATURAL GUARDIAN OF INFANT, M.R.H.**

49. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and

realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "48" herein, as though more fully set forth herein at length.

50. That at all times hereinafter mentioned, the plaintiff, THEODORA HARRISON, was the lawful Mother and Natural Guardian of the infant plaintiff, M.R.H. and as such said plaintiff, THEODORA HARRISON, was entitled to the society and services of said infant plaintiff, M.R.H.

51. By reason of the afore-described negligence of defendants, the plaintiff, THEODORA HARRISON, was deprived of the society and services of the infant plaintiff, M.R.H., and shall forever be deprived of said society and services.

52. As a result of herein above, plaintiff, THEODORA HARRISON, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, M.R.H.

53. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, THEODORA HARRISON, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, infant plaintiff, M.R.H. by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; infant plaintiff, M.R.H. by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; infant plaintiff, M.R.H., by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; infant plaintiff, M.R.H. by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; infant plaintiff, M.R.H.

by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; infant plaintiff, M.R.H., by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; infant plaintiff, M.R.H. by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; infant plaintiff, M.R.H. by her Mother and Natural Guardian, THEODORA HARRISON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; THEODORA HARRISON, as Mother and Natural Guardian infant plaintiff, M.R.H., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action..

DATED: Brooklyn, New York
October 14, 2024

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23MR11-17

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
October 14, 2024


ROBERT MIJUCA, ESQ.